

Supporting our reading is the fundamental canon of statutory construction that, “unless otherwise defined, words will be interpreted as taking their ordinary, con- temporary common meaning.” *Perrin v. United States*, 444 U.S. 37, 42 (1979). The language of § 5313(a)(1) plainly specifies the “conviction” date is the date on which the statutory sixty-day clock begins. As we recognized in *Wilson*, the word “conviction” is understood as “[t]he act or process of judicially finding someone guilty” of a crime; the state of having been proved guilty.” 753 F.3d at 1367 (quoting *Black’s Law Dictionary* 358 (8th ed. 2004)). The Supreme Court has also equated a guilty plea, such as Mr. Mulder’s no contest plea, with a conviction: “A plea of guilty differs in purpose and effect from a mere admission or an extrajudicial confession; it is itself a conviction. Like a verdict of a jury it is conclusive. More is not required; the court has nothing to do but give judgment and sentence.” *Dickerson v. New Banner Inst., Inc.*, 460 U.S. 103, 112–13 (1983) (quotation marks and citation omitted).² A “sentence,” on the other hand, is ordinarily understood as “[t]he judgment that a court formally pronounces after finding a criminal defendant guilty” or “the punishment imposed on a criminal wrongdoer.” *Black’s Law Dictionary* 1485 (9th ed. 2009). Thus, according to its ordinary meaning, a “conviction” occurs when the accused is found—or pleads—guilty; the convicted felon’s “sentencing” is separate and distinct from the determination of guilt. Just as in *Wilson*, where we held the plain language of § 5313(a)(1) did not support reading “conviction” as a final, post-exhaustion of appeals conviction, here, there is likewise no basis for interpreting “conviction” to mean conviction and sentencing. Congress, could have, but did not, draft § 5313(a)(1) to reduce benefits post-sentencing or post-exhaustion of appeals. See, e.g., 10 U.S.C. § 12312(a)(2) (providing for involuntary release from military service if a service-member “is convicted and sentenced to confinement . . . and the sentence has become final” (emphasis added)). Such specificity is absent here.

Legal Information Institute (https://www.law.cornell.edu/rules/fre/rule_101 as amended as of December 1, 2019)

Rule 101. Scope; Definitions

(a) Scope. These rules apply to proceedings in United States courts. The specific courts and proceedings to which the rules apply, along with exceptions, are set out in Rule 1101.

(b) Definitions. In these rules:

- (1) “civil case” means a civil action or proceeding;
- (2) “criminal case” includes a criminal proceeding;
- (3) “public office” includes a public agency;
- (4) “record” includes a memorandum, report, or data compilation;
- (5) a “rule prescribed by the Supreme Court” means a rule adopted by the Supreme Court under statutory authority; and
- (6) a reference to any kind of written material or any other medium includes electronically stored information.